

P O R T E R | S C O T T

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ELECTRONICALLY

FILED

*Superior Court of California,
County of San Francisco*

07/22/2026

Clerk of the Court

BY: RONNIE OTERO

Deputy Clerk

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

SUBHI ABDELHALIM;
CSAA INSURANCE EXCHANGE;
DOES 1 through 50, inclusive;

Defendants.

Case No.: CGC-25-631801

**OPPOSITION TO PLAINTIFF'S MOTION
FOR RECONSIDERATION OF MAY 12,
2026 ORDER GRANTING SPECIAL
MOTION TO STRIKE**

Date: July, 31, 2026

Time: 9:00 a.m.

Dept: 301

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 2026

1 **I. INTRODUCTION**

2 Plaintiff's Motion for Reconsideration is procedurally defective; and substantively devoid of any
3 merit. It should be denied.

4 **II. BRIEF FACTS**

5 On June 21, 2026, Plaintiff served a copy of a Motion for Reconsideration of this Court's May 12,
6 2026, Order granting Defendants' Anti-SLAPP motion. That draft Motion did not have a hearing date
7 listed in the caption. If Plaintiff subsequently served a copy of this motion with a hearing date, it was lost
8 in the veritable cascade of documents that Plaintiff has burdened and harassed the Defense with, since the
9 May 12, 2026 ruling on the Anti-SLAPP motion.¹

10 More importantly, as of June 24, 2026, this Court has not served a Notice of Entry of Order of the
11 May 12, 2026 Minute Order, granting Defendant's Anti-SLAPP motion. Defendants' proposed order on
12 that Anti-SLAPP motion remains pending Court signature. Therefore this motion is not yet ripe.

13 **III. LEGAL STANDARD AND ARGUMENT**

14 Under Code Civ. Proc. § 1008:

15 (a) When an application for an order has been made to a judge, or to a court, and refused
16 in whole or in part, or granted, or granted conditionally, or on terms, any party affected by
17 the order may, within 10 days after service upon the party of written notice of entry of the
18 order and based upon new or different facts, circumstances, or law, make application to the
19 same judge or court that made the order, to reconsider the matter and modify, amend, or
20 revoke the prior order. The party making the application shall state by affidavit what
21 application was made before, when and to what judge, what order or decisions were made,
22 and what new or different facts, circumstances, or law are claimed to be shown.

23 Here, Plaintiff's moving papers completely fail to raise any "new or different facts, circumstances,
24 or law" that would justify reconsideration of this Court's ruling on Defendants' Anti-SLAPP motion. In
25 reality, Plaintiff's motion simply seeks to relitigate the Anti-SLAPP motion (and his underlying case from
26 2021) and should be summarily denied.

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28 ¹ Defendant CSAA has recently filed a Motion to Have Plaintiff Deemed a Vexatious Litigant in Plaintiff Rosario's
concurrently filed case: entitled: *Rosario v. CSAA, S.F. County Case No. CGC-25-631802*. That motion is set for hearing on
August 26, 2026.

1 **IV. CONCLUSION**

2 Defendants respectfully request that this Court deny Plaintiff's motion for reconsideration.

3
4 Dated: July 22, 2026

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5
6 *Tyler J. O'Connell*

7 By _____
8 Chad S. Tapp
9 Tyler J. O'Connell
10 Attorneys for Defendants
11 CSAA INSURANCE EXCHANGE;
12 CARBONE, SMITH & KOYAMA; and
13 MICHAEL R. CHAMBERS
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PROOF OF SERVICE

At the time of service, I was over 18 years of age and not a party to this action. My business address is 2180 Harvard Street, Suite 500, Sacramento, California 95815. On July 22, 2026, I served the following document: **OPPOSITION TO PLAINTIFF'S MOTION FOR RECONSIDERATION OF MAY 12, 2026 ORDER GRANTING SPECIAL MOTION TO STRIKE**

	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
X	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

Addressed as follows:

PLAINTIFF, IN PRO PER

Franciscus Dylan Rosario
7624 Melody Drive
Rohnert Park, CA 94928
soltrinox@gmail.com

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed at Sacramento, California on July 22, 2026.

Serena Blithe

Serena Blithe